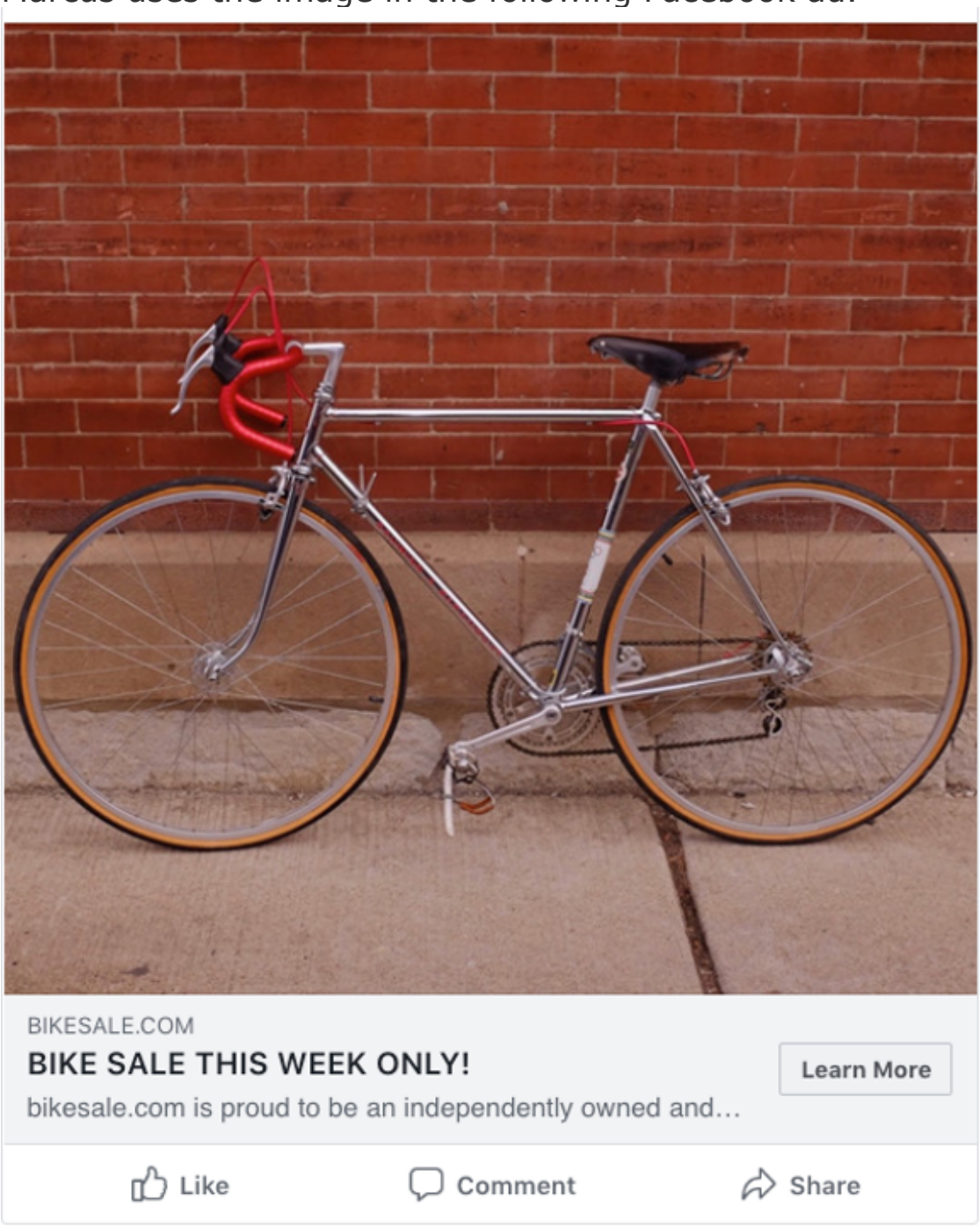
Commercial Advertising

Marcus, a bike shop owner, finds the following image on a search engine. The search result is displayed as follows.

Chicago Schwinn by John Smith is licensed under a Creative Commons Attribution-NonCommercial 4.0 International License.

Marcus uses the image in the following Facebook ad.



If Marcus was sued, how likely do you think it is he would be punished for copyright infringement?

- Extremely likely
- Somewhat likely
- Neither likely nor unlikely
- Somewhat unlikely
- Extremely unlikely

If the owner discovered the work was being used in this way, how likely do you think the owner would be to take action to enforce their legal rights?

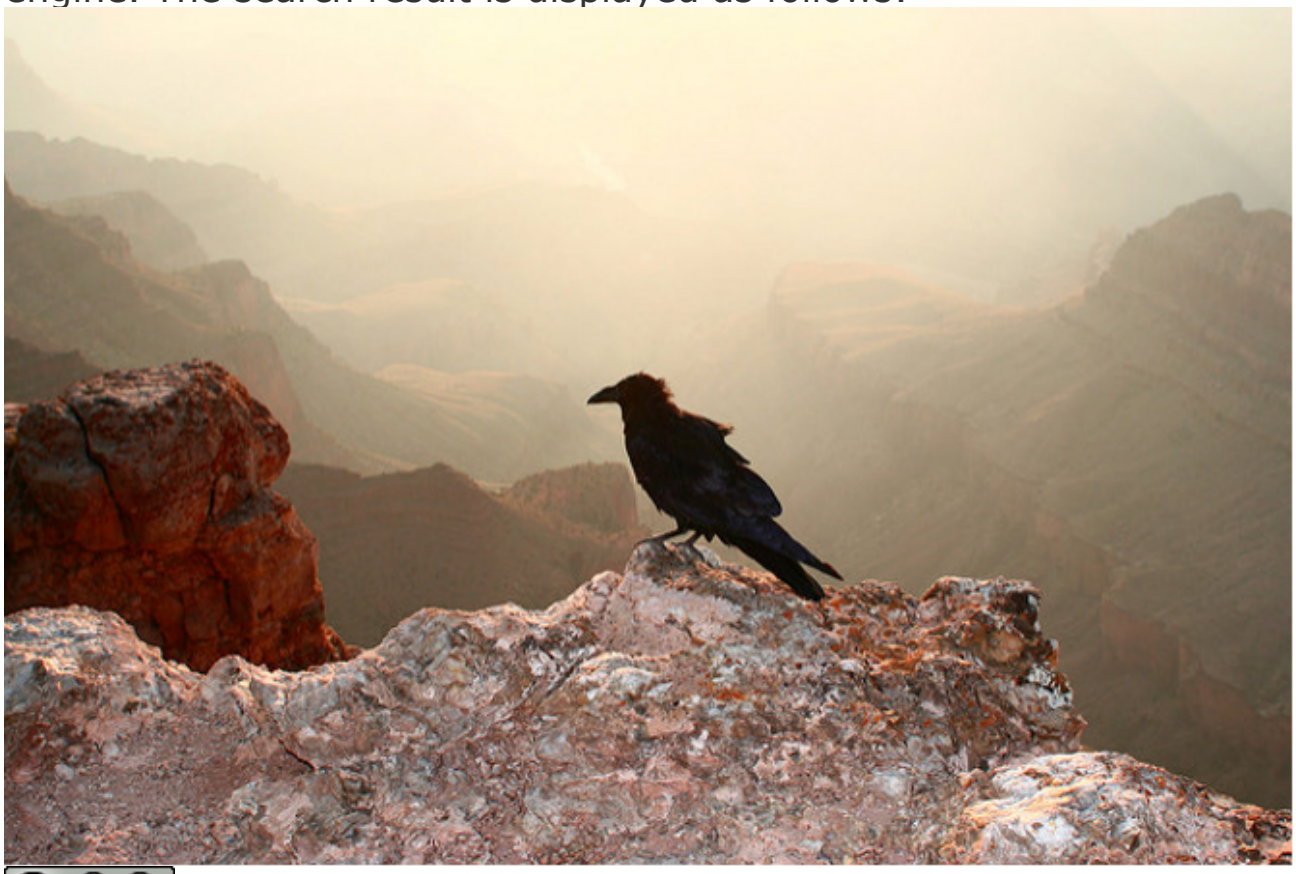
Extremely likely	Somewhat likely	Neither likely nor unlikely	Somewhat unlikely	Extremely unlikely
○	○	○	○	○

What do you think would be an appropriate punishment for this use, if any?

- ○ No punishment
- ○ A warning
- ○ A fine equal to the money lost by the copyright owner
- ○ Paying the copyright owner's legal fees for the lawsuit and several thousand dollar fine
- ○ A large fine, the copyright owner's legal fees, and at least a year in jail

Willful, Large Scale Copying

A business owner, Carole, finds the following image through a search engine. The search result is displayed as follows:



Canyon Crow by John Smith is licensed under a Creative Commons Attribution-NonCommercial-NoDerivatives 4.0 International License.

The business owner orders six hundred posters with the image and sells them online for $10 each. She does not provide any information about the poster besides the title she makes up, “Canyon Crow Poster.” She sells all of the posters for a total of $6,000 in revenue.

If Carole was sued, how likely do you think it is she would be punished for copyright infringement?

Extremely likely	Somewhat likely	Neither likely nor unlikely	Somewhat unlikely	Extremely unlikely
○	○	○	○	○

If the owner discovered the work was being used in this way, how likely do you think the owner would be to take action to enforce their legal rights?

Extremely likely	Somewhat likely	Neither likely nor unlikely	Somewhat unlikely	Extremely unlikely
○	○	○	○	○

What do you think would be an appropriate punishment for this use, if any?

- ○ No punishment
- ○ A warning
- ○ A fine equal to the money lost by the copyright owner
- ○ Paying the copyright owner's legal fees for the lawsuit and several thousand dollar fine
- ○ A large fine and at least a year in jail

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